



Instructions for Application for Posthumous Citizenship

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form N-644

What Is the Purpose of This Form?

Public Law 101-249, as amended, provides that an alien or non-citizen national of the United States who dies as a result of injury or disease incurred by active duty with the U.S. Armed Forces during specified periods of military hostilities may be granted U.S. citizenship.

If the application is approved, a Certificate of Citizenship will be issued in the name of the deceased veteran.

The certificate establishes that the decedent is considered a citizen of the United States as of the date of his or her death. Posthumous citizenship is an honorary status commemorating the bravery and sacrifices of the veteran. The certificate allows certain qualifying family members to apply for benefits under section 319(d) of the Immigration and Nationality Act (INA) or remain classified as immediate relatives for obtaining lawful permanent residence.

When Should I Use Form N-644?

The application must be filed no later than two years after the date of the decedent's death.

Who May File Form N-644?

1. You may file this form only if your relationship to the decedent was:

- A. Spouse;
- B. Father/Mother;
- C. Son/Daughter;
- D. Brother/Sister.

OR

2. You are the decedent's representative, defined as:

- A. Executor or administrator of decedent's estate;
- B. Guardian, conservator, or committee of decedent's next-of-kin;
- C. Service organization recognized by the Department of Veterans Affairs; or
- D. The Secretary of Defense or the Secretary's designee with USCIS after request by the next-of-kin.

NOTE: After a Certificate of Citizenship has been issued for a veteran, U.S. Citizenship and Immigration Services (USCIS) will **not** approve any later application on his or her behalf, except in the case of an application to replace a certificate that was lost, mutilated, or destroyed.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your application, you must submit all evidence and supporting documents listed in the **What Evidence Must You Submit** and/or **Specific Instructions** section[s] of these Instructions.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form N-644

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. State that an item is not applicable with "N/A." If the answer is none, write "none."
4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.
5. **Complete only Part I** of this application. **Do not write in Parts II, III, or IV**, which are reserved for the use of the executive departments.

General Requirements

To qualify for posthumous citizenship, the decedent must have been an alien or non-citizen national of the United States who:

1. Served honorably in an active-duty status in the military, air, or naval forces of the United States during:
 - A. 04/06/1917 - 11/11/1918 (World War I);
 - B. 09/01/1939 - 12/31/1946 (World War II);
 - C. 06/25/1950 - 07/01/1955 (Korean Hostilities);
 - D. 02/28/1961 - 10/15/1978 (Vietnam Hostilities);
 - E. 08/02/1990 - 04/11/1991 (Persian Gulf Conflict);
 - F. From 09/11/2001 until terminated by Executive Order of the President (Iraq Hostilities);
 - G. Any other period of military hostilities designated by Executive Order of the President for the purpose of naturalization benefits; or

H. A period of at least five years following enlistment or reenlistment in the U.S. Army under the Lodge Act of June 30, 1950, and who:

2. Died because of injury or disease incurred in or aggravated by that service; and
3. Met one of the following enlistment requirements:
 - A. Was enlisted, reenlisted, or inducted in the United States, Panama Canal Zone, American Samoa, or Swain's Island;
 - B. Was admitted to the United States as a lawful permanent resident at any time; or
 - C. If a person described in (1)(F), entered the United States, Panama Canal Zone, American Samoa, or Swain's Island pursuant to military orders at some time during such service.

What Evidence Must You Submit?

You must submit all evidence requested in these Instructions with your application. If you fail to submit required evidence, USCIS may reject or deny your application in accordance with 8 CFR 103.2(b)(1) and these Instructions.

Authorization documents

1. Unless you are the spouse of the decedent or the executor or administrator of the decedent's estate, you must obtain authorization from all living next-of-kin above you in the order of succession.
2. For example, if you are the decedent's brother, you would have to obtain authorization from all living relatives in classes (a), (b), and (c) in the **"Who May File Form N-644?"** section on **Page 1** of these instructions.

The authorization must be in the form of an affidavit stating the affiant's name, address, and relationship to the decedent and authorizing you to apply for posthumous U. S. Citizenship on behalf of the decedent. If the affidavit is in a language other than English, it must be accompanied by a certified English translator.

3. If you are in category (e) or (f) of the section **"Who May File Form N-644?"** you must submit a certified copy of your letter of appointment as the executor or administrator of the decedent's estate, or as the guardian, conservator, or committee of the decedent's next-of-kin.
4. If you are in group (g) of the section **"Who May File Form N-644?"** you must submit evidence of recognition of your organization by the Department of Veterans Affairs.

Documentation of the decedent's service and death

To facilitate certification of the decedent's military service and service-connected death by the executive departments, you should submit a legible copy of each of the following documents, if available:

1. Form DD214, Certificate of Release or Discharge from Active Duty;
2. Form DD 1300, Report of Casualty/Military Death Certificate; or
3. Any other military or state issued certificate of the decedent's death.

Failure to submit any of these documents may not automatically result in the denial of your application, but will delay the certification process.

Where To File?

Please see our website at www.uscis.gov/n-644 for the most current information about where to file this application.

Address Changes

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

You must have a United States address to file this application.

Initial Processing. Once USCIS accepts your application, we will check it for completeness. If you do not properly complete this application, you will not establish a basis for your eligibility and we may reject or deny your application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form N-644 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this application, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form N-644, we will deny your application and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

We ask for the information on this form, and associated evidence, to determine if you have established eligibility for the immigration benefit for which you are filing. Our legal right to ask for this information can be found in the Immigration and Nationality Act, as amended. We may provide this information to other government agencies. Failure to provide this information, and any requested evidence, may delay a final decision or result in denial of your Form N-644.